

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, December 23, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2024-30882 and DADS: 2024-31752 against Lieutenant Gabriel Cuevas Tax Registry No. 945633. The case was conferenced on December 12, 2024, before Assistant Deputy Commissioner of Trials Anne Stone who approved the negotiated penalty of a Command Discipline B and the forfeiture of TEN (10) vacation days to run concurrently for DADS No. 2024-30882 and DADS No. 2024-31752, after accepting the finding(s) of substantiation of the allegations contained in the aforementioned Charges and Specifications for both cases. The charges regarding DADS No. 2024-30882 and DADS No. 2024-31752 will be dismissed for plea purposes.

Andre Applewhite

Andre Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO. C-030939
BOOK & PAGE NO. Page 1 of 3
PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, CUEVAS	FIRST GABRIEL	M.I.	COMMAND 083
SHIELD NO. 00000	TAX REGISTRY NO. 945633	SOCIAL SECURITY NO.	DATE APPOINTED 01/07/2008	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Lieutenant Gabriel CUEVAS, on or about February 22, 2023, at approximately 0039, while assigned to 083 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused their authority as a member of the New York City Police Department, in that LT Cuevas stopped § 87(2)(b) without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated.
2. Lieutenant Gabriel CUEVAS, on or about February 22, 2023, at approximately 0039, while assigned to 083 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused their authority as a member of the New York City Police Department, in that LT Cuevas frisked § 87(2)(b) without sufficient legal authority.	DISMISSED	VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated. Combined with case #C-030530



FIRST DEPUTY COMMISSIONER

3/12/25
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)



POLICE COMMISSIONER

5/17/25
DATE

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-030939BOOK & PAGE NO.
Page 2 of 3

PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, CUEVAS	FIRST GABRIEL	M.I.	COMMAND 083
SHIELD NO. 00000	TAX REGISTRY NO. 945633	SOCIAL SECURITY NO.	DATE APPOINTED 01/07/2008	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
3. Lieutenant Gabriel CUEVAS, on or about February 22, 2023, at approximately 0039, while assigned to 083 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, wrongfully used force, in that LT Cuevas used physical force against § 87(2)(b) by shoving § 87(2)(b) without police necessity.	DISMISSED	
4. Lieutenant Gabriel CUEVAS, on or about February 22, 2023, at approximately 0039, while assigned to 083 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that LT Cuevas spoke discourteously to § 87(2)(b) by stating "get the fuck away from me" to § 87(2)(b) without police necessity.	DISMISSED	

FIRST DEPUTY COMMISSIONER

3/12/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER5/19/25
DATE

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-030939BOOK & PAGE NO.
Page 3 of 3

PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, CUEVAS	FIRST GABRIEL	M.I.	COMMAND 083
SHIELD NO. 00000	TAX REGISTRY NO. 945633	SOCIAL SECURITY NO.	DATE APPOINTED 01/07/2008	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
5. Lieutenant Gabriel CUEVAS, on or about February 22, 2023, at approximately 0039, while assigned to 083 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused their authority as a member of the New York City Police Department, in that LT Cuevas failed to provide § 87(2)(b) with a business card without police necessity.	DISMISSED	



FIRST DEPUTY COMMISSIONER

3/12/25

DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)



POLICE COMMISSIONER

5/19/25

DATE

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO. C-030530
BOOK & PAGE NO. Page <u>1</u> of <u>2</u>
PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, CUEVAS	FIRST GABRIEL	M.I.	COMMAND 083
SHIELD NO. 00000	TAX REGISTRY NO. 945633	SOCIAL SECURITY NO.	DATE APPOINTED 01/07/2008	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Lieutenant Gabriel CUEVAS, on or about May 5, 2023, at approximately 2140, while assigned to 083 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, wrongfully used force, in that LT Cuevas used physical force against § 87(2)(b) when he pushed § 87(2)(b) while § 87(2)(b) was handcuffed, without police necessity.	DISMISSED	B - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated.
2. Lieutenant Gabriel CUEVAS, on or about May 5, 2023, at approximately 2140, while assigned to 083 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that LT Cuevas gestured discourteously toward § 87(2)(b) without police necessity.	DISMISSED	VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated. Combined with case #C-030939



FIRST DEPUTY COMMISSIONER

3/12/25

DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)



POLICE COMMISSIONER

5/19/25

DATE

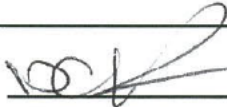
**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO. C-030530
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, CUEVAS	FIRST GABRIEL	M.I.	COMMAND 083
SHIELD NO. 00000	TAX REGISTRY NO. 945633	SOCIAL SECURITY NO.	DATE APPOINTED 01/07/2008	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
3. Lieutenant Gabriel CUEVAS, on or about May 5, 2023, at approximately 2140, while assigned to 083 PCT and on duty, in the vicinity of the 75th Precinct stationhouse, Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that LT Cuevas spoke discourteously to § 87(2)(b) by asking § 87(2)(b) to spell the word assault, without police necessity.	DISMISSED	
4. Lieutenant Gabriel CUEVAS, on or about May 5, 2023, at approximately 2140, while assigned to 083 PCT and on duty, in the vicinity of the 75th Precinct stationhouse, Kings County, abused his authority as a member of the New York City Police Department, in that LT Cuevas failed to provide § 87(2)(b) with a business card without police necessity.	DISMISSED	


FIRST DEPUTY COMMISSIONER3/12/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER5/19/25
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, March 12, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2024-30882 (PODS Case No. C-030939; CCRB Case No. 202301513) and Disciplinary Case No. 2024-31752 (PODS Case No. C-030530; CCRB Case No. 202304213) against Lieutenant Gabriel Cuevas, Tax No. 945633, with the recommendation that the Charges and Specifications against Lieutenant Cuevas be dismissed and that Lieutenant Cuevas receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur.

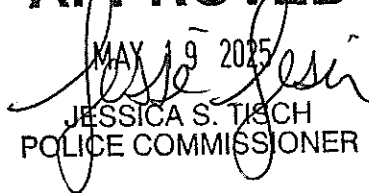
Separate and apart from the foregoing negotiated penalty, the undersigned recommends that, due to the excessive number of previous similar Civilian Complaint Review Board allegations, Lieutenant Cuevas receive Tactical Communications training from the Training Bureau.
RECOMMEND APPROVAL.



Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/pk

APPROVED
MAY 19 2025

JESSICA S. TISCH
POLICE COMMISSIONER